Mr. Michael Foster
Director, Motor Vehicle Service Division
American Postal Workers Union, AFL-CIO
1300 L Street, NW
Washington, DC 20005-4128

Re: Q18V-4Q-C 20375622/HQTV20200376
Class Action
Washington DC 20260-4100

Dear Mike:

The parties met at Step 4 of the grievance-arbitration process to discuss the above referenced grievance. The dispute was initiated at Step 4 by the American Postal Workers Union (APWU). Time limits were extended by mutual consent.

The issue presented by the APWU is whether it was a violation of Articles 1, 5 and 19 of the National Agreement, when the Postal Service required Motor Vehicle employees to sign a consent form titled, "Consent for Limited Queries of the Federal Motor Carrier Safety Administration (FMCSA) Drug and Alcohol Clearinghouse" which contained provisions unilaterally determined by the Postal Service.

The parties agree to resolve the dispute in accordance with the following:

The parties acknowledge the FMCSA requires employees to sign a consent for limited queries and agree that the consent will be as follows:

Consent for Limited Queries of the Federal Motor Carrier Safety Administration (FMCSA) Drug and Alcohol Clearinghouse

By my signature below, I hereby provide consent to the United States Postal Service (Postal Service) to conduct the required annual limited queries of the FMCSA Commercial Driver's License Drug and Alcohol Clearinghouse (Clearinghouse) to determine whether drug or alcohol violation information about me exists in the Clearinghouse. I acknowledge that the Postal Service may use a designated third-party administrator to conduct the query.

I understand that this consent and authorization is valid for two (2) years from the date it is signed. The consent will no longer be valid if I am not in a safety sensitive position which requires a CDL.

I authorize the Postal Service to conduct one annual limited query of the Clearinghouse for information about me in each of the two years. I acknowledge that the Postal Service reserves the right to choose the day on which such annual limited query is conducted and that queries may not be a full 365 days apart.

I understand that if a limited query conducted at any time during my employment indicates that drug or alcohol violation information about me exists in the Clearinghouse, FMCSA will not disclose that information to the

Postal Service or its designated third-party administrator without first obtaining additional specific consent from me.

A copy of this authorization is as effective and valid as the original.

The parties agree that any future changes to the above consent which directly relate to wages, hours or working conditions is a subject of bargaining and will be done in accordance with Article 19 of the National Agreement.

The parties further agree and acknowledge the Postal Service commitment to follow Federal Motor Carrier Safety Administration and Department of Transportation regulations for Commercial Driver License, and that no Postal Service policy will violate the Step 4 settlement in Case No. Q15V-4Q-C18046276/HQTV20170529.

Sincerely,

Rickey R. Dean
Manager, Labor Relations
Contract Administration (APWU)
U.S. Postal Service

Michael O. Foster
Director, Motor Vehicle Service
American Postal Workers
Union, AFL-CIO

Date: November 23, 2020